

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 1, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV411676	Brian Claire vs Manuel Groto et al	Motion to Set Aside Default/Judgment Scroll down to Line 1 for Tentative Ruling.
<u>LINE 2</u>	24CV430173	Lee (aka Lit) Leong vs Ashley A. Lopez	Motion to Quash OFF CALENDAR. On March 26, 2026 the parties notified the court of a settlement agreement.
<u>LINE 3</u>	24CV438701	James Bodwin vs Persimmons, Inc.	Motion for Sanctions Scroll down to Line 3 for Tentative Ruling.
<u>LINE 4</u>	25CV456187	Curtis Edwad McGovert vs Q2 Fiber Communic- ations Inc. et al	Motion to Compel Responses to Form Interrogatories, Special Interrogatories, Request for Production of Document, and Sanctions Scroll down to Line 4 for Tentative Ruling.
<u>LINE 5</u>	25CV462288	Kourosch Zahedi et al vs Volkswagen Group of America, Inc. et al	Motion Judgment on the Pleadings Scroll down to Line 5 for Tentative Ruling.
<u>LINE 6</u>	25CV473786	Jane Doe 1 vs Rafael Ramirez et al	Motion for Change of Venue Scroll down to Line 6 for Tentative Ruling.
<u>LINE 7</u>	25CV474250	Adelita Mendez Gonzalez vs Costco Wholesale Corpor- ation et al	Motion to Disqualify Plaintiff's Law Firm Scroll down to Line 7 for Tentative Ruling.
<u>LINE 8</u>	25CV477635	Mid-Century Insurance Company vs Justin Collins	Motion to Compel Responses to Request for Production of Documents, and Sanctions Scroll down to Line 8 for Tentative Ruling.
<u>LINE 9</u>	25CV480281	Salvador Ortiz vs General Motors LLC	Motion for Attorneys' Fees and Costs Scroll down to Line 9 for Tentative Ruling.

9:00 A.M.

Calendar Line # 1

Case Name Brian Claire vs Manuel Groto et al

Case No. 23CV411676

Motion to Set Aside Default/Judgment

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

On February 14, 2023, Plaintiff Brian Claire filed a Complaint alleging eight causes of actions arising from a wrongful eviction case against Xin Huang aka Thomas Huang, Manuel Groto, Joe Paigly, Mark Dehart, Tanya Demaria, and DOES 1 through 20 (collectively “Defendants”).

B. RELEVANT PROCEDURAL BACKGROUND

On April 15, 2024, Plaintiff filed an entry of default against Defendant Xin Huang aka Thomas Huang (“Huang”). On March 19, 2025, Plaintiff filed a Court Judgment for default against Defendant Huang for \$292,405.25 that was not entered as no judgment was provided. Defendant Huang filed an opposition to the entry of judgment on March 21, 2025. Plaintiff resubmitted a default judgment on May 1, 2025 and on November 18, 2025 filed an application for default judgment. The Honorable Roberta Hayashi took the matter under submission on November 24, 2025, and on December 12, 2025, ordered default judgment in the total amount of \$195,103.39 in favor of the Plaintiff and against Defendant Huang.

On March 10, 2026, Defendant Huang filed a motion to set aside and vacate the default judgment entered against him on April 15, 2024. On September 11, 2025, the Honorable Shella Deen denied the motion as untimely and failure to meet his burden. Defendant Huang then filed a motion for reconsideration that was continued July 13, 2026 at 1:30 p.m. in Department 18. After the hearing, the Honorable Shella Deen denied Defendant Huang’s motion for reconsideration.

C. PRESENT MOTION

On July 21, 2026, Defendant Huang filed another motion to set aside and vacate the default judgment. The motion was accompanied by a proof of service indicating electronic mail service to Plaintiff’s counsel on that same day.

Plaintiff opposes the motion and filed opposition papers on August 19, 2026.

On August 25, 2026, Defendant Huang filed a reply to Plaintiff’s opposition.

The Court has carefully reviewed the following: Defendant Huang’s motion, including a notice, Declaration of Thomas Huang, and memorandum of points and authorities (totaling 16 pages); Defendant Huang’s Index of Exhibits and attached Exhibits A- J (totaling 49 pages); Plaintiff’s opposition (totaling 10 pages); Defendant’s reply brief titled “opposition to plaintiff attorney’s memorandum of points and authorities filed on 8/19/2026” (totaling 6 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 1008, a non-prevailing party may make a motion to reconsider and enter a different order under the following conditions: (1) brought before the same judge that made the order sought to be reconsidered; (2) made within 10 days after service upon the party of the notice of entry of the order (extended under Code of Civ. Proc., § 1013 for type of service); (3) based on new or different facts, circumstances